

Calendar Line 7

Shari Yuan vs Starbucks Corporation
25CV464001

DEFENDANT’S MOTION FOR PROTECTIVE ORDER

As an initial matter, the motion was timely filed. The parties agreed to extend Defendant’s deadline to respond to the Requests for Admission to March 6, 2026, and Defendant filed the present motion on that date after engaging in meet-and-confer efforts.

Under CCP sections 2017.010 and 2033.080, discovery may be obtained regarding matters relevant to the subject matter of the action or to the determination of a motion made in the action. During the parties’ meet-and-confer efforts, Plaintiff’s counsel acknowledged that Requests for Admission Nos. 1 through 7 are not relevant to the allegations of the complaint and asserted they may be relevant to Plaintiff’s anticipated opposition to Defendant’s motion to transfer venue.

The Court finds good cause for a protective order. Requests Nos. 1 through 7 seek admissions concerning the residence of Defendant’s Chief Executive Officer and the existence and use of a Starbucks office in Newport Beach, California. Defendant has presented evidence that its principal place of business is located in Washington. Even assuming the truth of the requested admissions, Plaintiff has not demonstrated how the existence or use of a corporate office in Orange County, or the residence of Defendant’s Chief Executive Officer, would tend to establish that venue is proper in Santa Clara County under CCP sections 395 or 395.5.

The Court is mindful that the motion to transfer venue remains pending, scheduled for July 10, 2026. However, Plaintiff has not filed opposition to the present motion and has not identified any legal theory, evidence, or authority demonstrating the relevance of Requests Nos. 1 through 7 to the venue issues presently before the Court. On the record before it, the Court finds the requests are not reasonably calculated to lead to the discovery of admissible evidence relevant to any claim, defense, or motion in this action. (CCP §§ 2017.010, 2017.020, 2019.030.)

Accordingly, Defendant’s motion for a protective order is GRANTED. Defendant need not respond to Requests for Admission Nos. 1 through 7.

Defendant to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

Calendar Line 8

Avelardo Saenz v. Ford Motor Company et al.
25CV481792

Plaintiff Avelardo Saenz purchased a 2024 Ford Maverick (Subject Vehicle) in October 2024 from Fritts Ford (Dealership). (Complaint at ¶ 7.) Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 47.) Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (*Id.* at ¶ 49.) Plaintiff sued Dealership and Ford Motor Company in December 2025. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership’s petition to compel arbitration, based on the Retail Installment Sales Contract (“RISC”) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle. Having reviewed the language of the RISC’s arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

LEGAL STANDARD

Dealership maintains that the Federal Arbitration Act (“FAA”) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Mtn. to Compel Arbitration at pp. 6:25-7:1.) The arbitration provision states “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq.) and not by any state law concerning arbitration.” (Declaration of Trina Clayton [“Clayton Decl.”], Ex. A.) Under the FAA, the court’s role is limited to determining “(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue.” (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130.) To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170.)

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.) The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755.)

ANALYSIS

There is a Valid Agreement to Arbitrate

The arbitration provision in the RISC provides, in relevant part:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A.) Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ ALL PAGES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ABOVE, BEFORE SIGNING BELOW.” (*Ibid.*) Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ “A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.” ’ ”].)

The Scope of the Arbitration Agreement Covers Plaintiff’s Claims

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise..., between you and us..., which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Clayton Decl., Ex. A.) Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

Plaintiff does not object to these arguments. In fact, Plaintiff has not filed any opposition whatsoever. The failure to timely file an opposition is a basis for the Court to grant the motion, as the Court may construe such non-opposition as a concession that the motion is meritorious. (See *D.I. Chadbourne, Inc. v. Super. Court* (1964) 60 Cal.2d 723, 728, fn. 4; see also Cal. Rule of Court 8.54, subd. (c) [appellate rule stating that “[a] failure to oppose a motion may be deemed consent to the granting of the motion”].) The court does not reach Dealership’s arguments about lack of waiver and lack of unconscionability. Plaintiff forfeited any argument about waiver and unconscionability by not opposing Dealership’s arguments on those points.

This Action is Stayed in its Entirety

Dealership requests a stay of the entire action. As Dealership notes, Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Proceeding against both defendants in separate forums carries the risk of rendering inconsistent rulings. As noted above, Plaintiff has not offered any arguments opposing a stay to the entire action. Accordingly, pursuant to Code of Civil Procedure section 1281.4, and consistent with the Federal Arbitration Act (9 U.S.C. § 3), this action is stayed in its entirety pending completion of arbitration.

DISPOSITION

The petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The court will prepare the order.

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